

Obento – Hayward

CALIFORNIA EMPLOYEE HANDBOOK

Operating location(s): Hayward, California

Effective date: July 1, 2026 | Version: 2026-07

Employer of record: OH BENTO INC (dba Obento)

About This Handbook

This Handbook describes the policies, practices, and expectations of OH BENTO INC (“the Company”), operating Obento – Hayward. It applies to employees working at the Company’s location(s) in Hayward, California. It is a general guide; it is not a complete statement of every policy and may not address every situation.

Company information	
Employer of record	OH BENTO INC (dba Obento)
Address	22501 Main St, Hayward, CA 94541
Phone	(951) 961-9924
Paydays	every other Friday (bi-weekly)
HR / manager contact	the General Manager

This Handbook is not a contract of employment and does not create contractual rights or guarantee employment for any period. Employment with the Company is at-will, as described below. The Company may add to, modify, suspend, or revoke any policy in this Handbook at any time, with or without notice, except the at-will nature of employment, which may only be changed by a written agreement signed by an officer of the Company.

Nothing in this Handbook limits any right protected by law, including the right of employees to discuss or disclose wages, hours, and other terms and conditions of employment, to engage in protected concerted activity, or to report suspected unlawful conduct to a government agency. To the extent any policy here conflicts with applicable federal, state, or local law, the law controls.

Arbitration is addressed in a separate document. The Company’s Mutual Arbitration Agreement is a stand-alone agreement provided and signed separately from this Handbook; it is not part of this Handbook and is not affected by the Company’s right to revise Handbook policies.

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The Company is an equal opportunity employer. Employment decisions are based on merit, qualifications, and business needs, and are made without regard to race, color, ancestry, national origin, citizenship or immigration status, religion or creed (including religious dress and grooming practices), sex, gender, gender identity or expression, sexual orientation, pregnancy, childbirth, breastfeeding or related conditions,

marital status, age (40 and over), physical or mental disability, medical condition, genetic information, military or veteran status, reproductive health decision-making, hairstyle associated with race (CROWN Act), or any other characteristic protected by federal, state, or local law. This applies to recruiting, hiring, training, promotion, compensation, discipline, and termination. 11

Reasonable accommodation. The Company provides reasonable accommodation for qualified individuals with disabilities and for sincerely held religious beliefs and practices, absent undue hardship, through a timely, good-faith interactive process. To request an accommodation, contact the Company contact above. 11

3. Policy Against Harassment, Discrimination, and Retaliation 11

Zero tolerance. The Company strictly prohibits harassment, discrimination, and retaliation based on any characteristic protected by law (listed in Section 2). This policy protects all employees and applicants and applies to conduct by managers, coworkers, and third parties such as guests, vendors, and contractors. It applies in the workplace and at any work-related setting, including events, travel, and electronic communications. 12

4. At-Will Employment 13

Employment with the Company is at-will. This means either you or the Company may end the employment relationship at any time, for any lawful reason or no reason, with or without cause and with or without advance notice. No one has authority to alter the at-will relationship or to promise employment for any specific period, except by a written agreement signed by an officer of the Company. Completing any introductory period, receiving good performance reviews, or receiving benefits does not change the at-will relationship. 13

5. Employment Classifications 13

Non-exempt employees are paid for all hours worked and are entitled to overtime and meal/rest periods as described in Section 7. Exempt employees meet legal tests for an overtime exemption and are paid a fixed salary (in 2026, the California exempt salary minimum is \$70,304 per year / \$1,352 per week). Employees are also classified as full-time, part-time, or temporary based on scheduled hours. Your classification will be communicated to you; ask the Company contact with any questions. Independent contractors are not employees and are not covered by this Handbook. 14

6. Immigration Compliance (Form I-9) 14

The Company complies with applicable immigration laws and does not discriminate on the basis of citizenship or national origin. All employees must complete Form I-9 and present documents that establish identity and authorization to work in the United States within the time required by law.

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8. Paid Sick Leave 17

Eligible employees accrue paid sick leave at not less than one hour for every 30 hours worked, beginning on the first day of employment, and may begin using it on the 90th day. Consistent with California law, the Company caps annual use at 40 hours (5 days) and total accrual at 80 hours (10 days), with unused accrued sick leave carrying over from year to year up to the accrual cap. (Alternatively, where the Company front-loads at least 40 hours / 5 days at the start of each year, carryover is not required.)

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Paid sick leave may be used for your own or a covered family member's diagnosis, care, or treatment of a health condition, for preventive care, and for purposes related to domestic violence, sexual assault, or stalking. The Company will not deny use for lack of advance notice when the need is unforeseeable, will not require you to find a replacement, and will not retaliate against you for using or requesting sick leave.

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9. Other Leaves of Absence 17

The Company provides the leaves required by law. Eligibility, length, pay, and documentation depend on the specific leave and your circumstances. Request leave as far in advance as practical through the Company contact, who will provide the applicable forms and notices. Taking a protected leave will not, by itself, be treated as a resignation.

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10. Lactation Accommodation 18

The Company provides a reasonable amount of break time and a private space to express milk. The space is not a restroom, is shielded from view and free from intrusion, is safe and clean, and includes a place to sit and a surface for a pump, with access to electricity and to a sink and refrigeration nearby. Tell the Company contact if you need lactation accommodation. If the Company cannot provide a particular accommodation, it will tell you in writing and explain why. Retaliation for

requesting or using lactation accommodation is prohibited, and you may file a complaint with the Labor Commissioner. 19

11. Standards of Conduct 19

Employees are expected to perform their work competently, follow lawful instructions, and treat guests and coworkers with courtesy and respect. The following examples of unacceptable conduct may result in discipline up to and including termination. This list is illustrative, not exhaustive, and does not alter at-will employment: 19

12. Dress Code, Grooming, and Hygiene 20

Because we handle food and serve guests, employees must report to work clean and well-groomed and follow these health-and-safety-based standards: wear the approved, clean uniform; keep hair restrained and facial hair neat; keep fingernails short and clean; wear non-slip, closed-toe shoes; and avoid loose or dangling jewelry and strong fragrances consistent with health-code and safety requirements. The Company will reasonably accommodate dress and grooming practices related to religion, disability, sex, gender identity or expression, and protected hairstyles (CROWN Act). Raise accommodation needs with the Company contact. 20

13. Attendance and Punctuality 20

Regular, punctual attendance is essential. If you cannot work a scheduled shift or will be late, notify your supervisor as far in advance as possible and at least 4 hours before your shift when practical. Excessive or patterned absences or tardiness may result in discipline. If you are absent without notice for three consecutive scheduled shifts, the Company may treat it as job abandonment and follow up with you; this does not relieve the Company of its obligation to pay final wages or affect any legally protected leave. 20

14. Technology, Communications, and Privacy 20

Company computers, networks, phones, point-of-sale systems, email, and similar resources are Company property provided for business use. Employees should have no expectation of privacy in materials created, stored, sent, or received using Company systems, which the Company may monitor and access to the extent permitted by law. 20

15. Confidentiality and Conflicts of Interest 21

Confidential information. In your work you may learn confidential or proprietary information such as recipes and preparation methods, vendor pricing and sourcing, financial data, operational procedures, and non-public customer information. Do not use or disclose this information except as your job requires or as authorized in writing. This does not restrict your legally protected rights (see Section 14), including the right to discuss wages and working conditions or to report unlawful conduct to a government agency. 21

Conflicts of interest. Avoid situations where your personal interests conflict with the Company's, such as outside work that competes with or interferes with your job. Disclose potential conflicts to the Company contact. The Company does not prohibit lawful off-duty conduct except where it creates a genuine conflict or affects job performance. 21

Return of property. On separation, return all Company property (keys, uniforms, equipment, access cards, devices, and documents). The Company will deduct from wages only when permitted by law and with your specific written authorization. 21

16. Safety, Health, and Workers' Compensation 21

The Company maintains an Injury and Illness Prevention Program (IIPP) and expects every employee to follow safe work practices, use required equipment, and keep work areas clean. Report any hazard, injury, or accident to your supervisor immediately, however minor. 21

17. Drug- and Alcohol-Free Workplace 22

Being impaired by alcohol, cannabis, unlawful drugs, or misused prescription or over-the-counter medication while working, and the unlawful manufacture, possession, distribution, or use of drugs on Company premises or during work, are prohibited. If a prescribed or over-the-counter medication could affect your ability to work safely, talk to your supervisor. 22

Off-duty cannabis. Consistent with California law (FEHA, as amended by AB 2188/SB 700), the Company does not discriminate against employees based on lawful off-duty cannabis use away from work, or on findings from certain tests that detect non-psychoactive cannabis metabolites. This does not permit possession, use, or impairment at work. 22

Searches. The Company may inspect work areas, lockers, and personal items brought onto the premises only on reasonable suspicion of a policy

violation, consistent with privacy law. 22

18. Workplace Violence Prevention 22

The Company has zero tolerance for workplace violence and maintains a written Workplace Violence Prevention Plan as required by California law (Labor Code section 6401.9 / SB 553), including procedures to report and respond to threats and incidents, training, and a violent-incident log.

Threats, intimidation, physical aggression, and possession of weapons on Company premises or while on Company business are prohibited. Report any threat or act of violence to a manager immediately; in an emergency, call 911. 23

Security cameras may be used for safety, training, and loss prevention. Cameras are never placed in restrooms or lactation areas. 23

19. Whistleblower Protection and Open Door 23

The Company complies with the law and expects employees to report suspected unlawful or unethical conduct. Consistent with Labor Code section 1102.5, the Company prohibits retaliation against any employee who reports, or refuses to participate in, conduct they reasonably believe is unlawful, whether the report is made internally or to a government or law-enforcement agency. Report concerns through any channel in Section 3 or directly to a government agency. 23

20. General Provisions 23

Modification. Except for the at-will nature of employment, the Company may add to, change, suspend, or revoke any policy in this Handbook at any time, with or without notice. This Handbook supersedes and replaces all prior handbooks, policies, and practices, whether written or verbal. 23

Separate agreements. The Company's Mutual Arbitration Agreement and any signed offer letter or employment agreement are separate documents; where a signed individual agreement conflicts with this Handbook, the signed agreement controls as to its subject matter. 23

Severability. If any provision of this Handbook is found unlawful or unenforceable, the remaining provisions remain in effect, and the unlawful provision will be applied only to the extent permitted by law. 23

City Addendum — Hayward, California 24

This Addendum supplements the Handbook for employees who work in Hayward, Alameda County. Where a local ordinance provides greater

rights than state law, the local ordinance applies. Local rates and rules change at least annually — the figures below must be reverified at each printing.	24
Acknowledgment of Receipt	25
(Review the statements below — your signature on the next page confirms all of them. Keep the Handbook for your reference; questions go to the General Manager.)	25

1. Welcome and Our Standards

Welcome to the team. Our success depends on team members who are disciplined, dependable, and treat guests and one another with respect. We are committed to a workplace where people can do excellent work, grow, and be treated fairly and lawfully.

Open-Door Policy

If you have a question, concern, or suggestion, you are encouraged to raise it. You may bring it to your supervisor; if that does not resolve it or you are uncomfortable doing so, you may go to the General Manager or to the Company contact listed below. The Company prohibits retaliation against anyone who raises a concern in good faith.

Company contact: the General Manager

2. Equal Employment Opportunity

The Company is an equal opportunity employer. Employment decisions are based on merit, qualifications, and business needs, and are made without regard to race, color, ancestry, national origin, citizenship or immigration status, religion or creed (including religious dress and grooming practices), sex, gender, gender identity or expression, sexual orientation, pregnancy, childbirth, breastfeeding or related conditions, marital status, age (40 and over), physical or mental disability, medical condition, genetic information, military or veteran status, reproductive health decision-making, hairstyle associated with race (CROWN Act), or any other characteristic protected by federal, state, or local law. This applies to recruiting, hiring, training, promotion, compensation, discipline, and termination.

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Zero tolerance. The Company strictly prohibits harassment, discrimination, and retaliation based on any characteristic protected by law (listed in Section 2). This policy protects all employees and applicants and applies to conduct by managers, coworkers, and third parties such as guests, vendors, and contractors. It applies in the workplace and at any work-related setting, including events, travel, and electronic communications.

What harassment includes

Harassment is unwelcome conduct based on a protected characteristic that creates an intimidating, hostile, or offensive work environment, or that is made a condition of employment. It may be verbal, visual, physical, or electronic, and may occur between any persons regardless of sex. Examples include, but are not limited to:

- Slurs, epithets, derogatory or demeaning remarks, jokes, or stereotyping;
- Unwelcome sexual advances, requests for sexual favors, or conditioning any job benefit on sexual conduct;
- Sexually suggestive comments, gestures, images, messages, or unwanted touching, blocking movement, or other physical interference;
- Displaying or sharing offensive material, including by text, email, or social media; and
- Abusive conduct (bullying) — malicious conduct that a reasonable person would find hostile or offensive and unrelated to legitimate business interests.

How to report — multiple channels

You do not have to report to the person you believe is responsible, and you do not have to confront that person. Report any conduct you believe violates this policy through any of these channels, in any order:

- Your supervisor or General Manager;
- The Company contact: **the General Manager**; or
- Any member of management you trust. Reports may be made verbally or in writing.

Investigation and response

The Company will take all complaints seriously and will conduct a fair, timely, and thorough investigation by an impartial person, maintaining confidentiality to the extent possible consistent with a complete investigation. The investigation will reach a reasonable conclusion based on the evidence, and the Company will take appropriate remedial action if a violation is found. The Company will inform the parties when the matter is closed. Employees are expected to cooperate in investigations.

No retaliation

The Company prohibits retaliation against anyone who reports a concern, participates in an investigation, or opposes conduct they reasonably believe is unlawful, regardless of whether the underlying complaint is substantiated. Retaliation is itself a violation of this policy and should be reported the same way.

Your right to file with a government agency

Nothing in this policy prevents you from filing a complaint with the California Civil Rights Department (CRD) or the U.S. Equal Employment Opportunity Commission (EEOC). Under California law, you generally have three (3) years from the date of the conduct to file with the CRD. These agencies serve as neutral fact-finders and may help resolve complaints.

Training. Consistent with California law, the Company provides sexual-harassment-prevention training to supervisory employees (2 hours) and non-supervisory employees (1 hour) within six months of hire or promotion and every two years thereafter.

4. At-Will Employment

Employment with the Company is at-will. This means either you or the Company may end the employment relationship at any time, for any lawful reason or no reason, with or without cause and with or without advance notice. No one has authority to alter the at-will relationship or to promise employment for any specific period, except by a written agreement signed by an officer of the Company. Completing any introductory period, receiving good performance reviews, or receiving benefits does not change the at-will relationship.

Introductory Period

The first 90 days of employment are an introductory period used to evaluate performance, attendance, and fit. This period does not change at-will status, and the Company may extend it or end employment at any time.

5. Employment Classifications

Non-exempt employees are paid for all hours worked and are entitled to overtime and meal/rest periods as described in Section 7. Exempt employees meet legal tests for an overtime exemption and are paid a fixed salary (in 2026, the California exempt salary minimum is \$70,304 per year / \$1,352 per week). Employees are also classified as full-time, part-time, or temporary based on scheduled hours. Your classification will be communicated to you; ask the Company contact with any questions. Independent contractors are not employees and are not covered by this Handbook.

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7. Wage, Hour, and Pay Practices

Timekeeping

Non-exempt employees must accurately record all time worked, including the start and end of each shift and the start and end of each meal period. Working “off the clock” is strictly prohibited — you must record, and you will be paid for, all time you work, including pre-shift and post-shift tasks. Never record another person’s time or allow anyone to record yours. If a time entry is missing or wrong, tell your supervisor so it can be corrected and initialed. Falsifying time records is grounds for discipline up to termination.

Pay Periods and Paydays

Wages are paid every other Friday (bi-weekly), and in every case within seven (7) calendar days after the close of the pay period in which they were earned, as required by California law (Labor Code section 204). Pay periods and paydays are also posted at the location.

Overtime

Overtime applies to non-exempt employees and is paid as required by California law:

- 1.5× the regular rate for hours over 8 in a workday, over 40 in a workweek, and for the first 8 hours on the seventh consecutive day of work in a workweek; and
- 2× the regular rate for hours over 12 in a workday, and over 8 on the seventh consecutive day of work in a workweek.

Overtime must be authorized in advance, but all overtime worked will be paid. Working unauthorized overtime may result in discipline, but never in non-payment.

Meal Periods

Non-exempt employees receive an unpaid, duty-free meal period of at least 30 minutes that begins before the end of the fifth hour of work. A second 30-minute meal period is provided when you work more than 10 hours. During meal periods you are relieved of all duty and free to leave the premises; you must clock out and back in.

Meal-period waivers. If you work no more than 6 hours, you and the Company may agree in writing to waive the first meal period. If you work no more than 12 hours, the second meal period may be waived in writing only if the first was not waived. Any waiver is voluntary and may be revoked by you at any time.

If a meal period is missed, short, late, or interrupted (read this)

If you are unable to take a full, timely, duty-free 30-minute meal period for any reason, **report it to your supervisor the same day** using the Company's meal-period record so the reason can be documented and any premium paid. If you voluntarily choose to start your meal late, cut it short, or skip it for personal reasons, note that as well. The Company relies on these records and does not pressure or discourage employees from taking full breaks.

Rest Periods

Non-exempt employees receive a paid, duty-free rest period of 10 minutes for every 4 hours worked (or major fraction). Rest periods should be taken near the middle of each work period when practical. You are not required to clock out for rest periods and are relieved of all duty; you may not be required to remain on-call during a rest period.

Premium Pay for Missed Meal or Rest Periods

If the Company fails to provide a compliant meal or rest period, you are entitled to one additional hour of pay at your regular rate of compensation (not merely your base hourly rate) for each workday a meal-period violation occurs and one additional hour for each workday a rest-period violation occurs. "Regular rate of compensation" includes nondiscretionary pay such as nondiscretionary bonuses, commissions, and similar earnings. Report any missed, short, or late period so the premium can be paid.

Reporting-Time Pay

If you report to work as scheduled but are not put to work or are given less than half of your scheduled shift, you will be paid reporting-time pay as required by the applicable Wage Order — generally half the scheduled shift, with a minimum of 2 and a maximum of 4 hours at your regular rate. Reporting-time pay does not apply in all circumstances (for example, certain operational interruptions beyond the Company's control).

Split-Shift Premium

If your workday is interrupted by a non-paid, non-meal period established by the Company (a "split shift"), you may be entitled to a split-shift premium of one hour at the minimum wage in addition to wages, as required by the applicable Wage Order, depending on your total earnings that day.

Day of Rest

Non-exempt employees are generally entitled to one day's rest in seven. The Company schedules with this in mind; speak to your manager if you have concerns about your schedule.

Tips and Gratuities

Tips belong to employees. Under California Labor Code section 351, a tip or gratuity left by a guest is the sole property of the employee or employees to whom it is given. The Company, its owners, managers, and supervisors do not take, keep, or share in any portion of employee tips. No manager or supervisor participates in any tip pool.

Tip pooling. Where a tip pool is used, it is shared only among non-supervisory employees who are part of the chain of service (for example, servers, bussers, bartenders, and similar staff), in accordance with law. No tip credit is taken: you are paid the full applicable minimum wage in addition to any tips you receive. You must report all tips as required by federal and state tax law; the Company provides a method to do so.

Service Charges

A mandatory service charge or large-party charge added by the Company to a guest's bill is not a tip and is not governed by Section 351. Any such charge, and how it is distributed, will comply with applicable law and any local ordinance that governs service charges in the location where you work (see the City Addendum). The Company will tell you whether any service charge applies to your role and how amounts paid to employees are calculated and recorded.

Final Pay

Your final wages — including all earned, unused vacation or PTO if the Company provides it — are paid as required by California law:

- If the Company discharges you, all final wages are due at the time of termination at the location;
- If you quit with at least 72 hours' notice, your final wages are due on your last day; and
- If you quit with less than 72 hours' notice, your final wages are due within 72 hours.

Wage Statements

You will receive an itemized wage statement each pay period showing all information required by law, including gross and net wages, hours worked, applicable rates, and deductions. Review it and report any discrepancy to the Company contact promptly.

8. Paid Sick Leave

Eligible employees accrue paid sick leave at not less than one hour for every 30 hours worked, beginning on the first day of employment, and may begin using it on the 90th day. Consistent with California law, the Company caps annual use at 40 hours (5 days) and total accrual at 80 hours (10 days), with unused accrued sick leave carrying over from year to year up to the accrual cap. (Alternatively, where the Company front-loads at least 40 hours / 5 days at the start of each year, carryover is not required.)

Paid sick leave may be used for your own or a covered family member's diagnosis, care, or treatment of a health condition, for preventive care, and for purposes related to domestic violence, sexual assault, or stalking. The Company will not deny use for lack of advance notice when the need is unforeseeable, will not require you to find a replacement, and will not retaliate against you for using or requesting sick leave.

Local note

The city or cities where the Company operates (Hayward) do not have a separate paid-sick-leave ordinance; California state sick leave above applies in full.

9. Other Leaves of Absence

The Company provides the leaves required by law. Eligibility, length, pay, and documentation depend on the specific leave and your circumstances. Request leave as far in advance as practical through the Company contact, who will provide the applicable forms and notices. Taking a protected leave will not, by itself, be treated as a resignation.

Family and medical leave (CFRA and FMLA)

Under the California Family Rights Act (CFRA), which applies to employers with 5 or more employees, eligible employees who have worked at least 1,250 hours in the prior 12 months may take up to 12 workweeks of job-protected leave in a 12-month period to bond with a new child, to care for a covered family member with a serious health condition, or for the employee's own serious health condition, among other qualifying reasons. Where the federal Family and Medical Leave Act (FMLA) also applies, leave generally runs concurrently.

Pregnancy Disability Leave (PDL)

An employee disabled by pregnancy, childbirth, or a related medical condition may take up to four months of job-protected leave and reasonable accommodation. PDL is separate from CFRA bonding leave and does not count against it; CFRA bonding leave may be available after the period of pregnancy disability ends.

Reproductive Loss Leave

Eligible employees may take up to 5 days of reproductive loss leave following a reproductive loss event (such as a failed adoption or surrogacy, miscarriage, stillbirth, or unsuccessful assisted reproduction), as provided by law. This leave is separate from bereavement leave.

Bereavement Leave

Eligible employees may take up to 5 days of bereavement leave on the death of a family member, to be completed within three months of the death, as provided by law. You may use available paid leave during bereavement; otherwise it is unpaid.

Leave for victims of crime or abuse

Consistent with California law (including the protections consolidated under the Fair Employment and Housing Act), employees who are victims — and employees with a family member who is a victim — of a qualifying act of violence may take protected time off for purposes such as seeking medical attention, safety planning, or legal proceedings. The Company provides the Civil Rights Department's required notice of these rights and will discuss reasonable accommodations and confidentiality.

Other legally protected leaves

These include Paid Family Leave wage replacement through the EDD (which does not itself provide job protection but may run with protected leave), jury and witness duty, voting leave, military and military-family leave, organ and bone-marrow donation leave, time off for school activities and certain school/childcare emergencies, and any other leave required by federal, state, or local law. Ask the Company contact for details on any leave.

10. Lactation Accommodation

The Company provides a reasonable amount of break time and a private space to express milk. The space is not a restroom, is shielded from view and free from intrusion, is safe and clean, and includes a place to sit and a surface for a pump, with access to electricity and to a sink and refrigeration nearby. Tell the Company contact if you need lactation accommodation. If the Company cannot provide a particular accommodation, it will tell you in writing and explain why. Retaliation for requesting or using lactation accommodation is prohibited, and you may file a complaint with the Labor Commissioner.

11. Standards of Conduct

Employees are expected to perform their work competently, follow lawful instructions, and treat guests and coworkers with courtesy and respect. The following examples of unacceptable conduct may result in discipline up to and including termination. This list is illustrative, not exhaustive, and does not alter at-will employment:

- Theft, dishonesty, or falsifying Company or employee records (including time or cash-handling records);
- Fighting, threats, intimidation, or any violation of the workplace-violence policy;
- Harassment, discrimination, or retaliation in violation of Section 3;
- Working under the influence of alcohol or unlawful drugs, or other violations of Section 17;
- Insubordination or refusal to follow reasonable, lawful instructions;
- Conduct that endangers the health or safety of any person, or serious violations of food-safety or sanitation rules; and
- Unauthorized removal or use of Company property.

Discipline

The Company may address conduct or performance issues with coaching, verbal or written warnings, suspension, or termination. The Company is not required to follow any particular sequence and may move directly to termination when it judges that appropriate, consistent with at-will employment.

12. Dress Code, Grooming, and Hygiene

Because we handle food and serve guests, employees must report to work clean and well-groomed and follow these health-and-safety-based standards: wear the approved, clean uniform; keep hair restrained and facial hair neat; keep fingernails short and clean; wear non-slip, closed-toe shoes; and avoid loose or dangling jewelry and strong fragrances consistent with health-code and safety requirements. The Company will reasonably accommodate dress and grooming practices related to religion, disability, sex, gender identity or expression, and protected hairstyles (CROWN Act). Raise accommodation needs with the Company contact.

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Regular, punctual attendance is essential. If you cannot work a scheduled shift or will be late, notify your supervisor as far in advance as possible and at least 4 hours before your shift when practical. Excessive or patterned absences or tardiness may result in discipline. If you are absent without notice for three consecutive scheduled shifts, the Company may treat it as job abandonment and follow up with you; this does not relieve the Company of its obligation to pay final wages or affect any legally protected leave.

14. Technology, Communications, and Privacy

Company computers, networks, phones, point-of-sale systems, email, and similar resources are Company property provided for business use. Employees should have no expectation of privacy in materials created, stored, sent, or received using Company systems, which the Company may monitor and access to the extent permitted by law.

Personal cell phones

Store personal cell phones away during working time; use them only on breaks or off-duty meal periods, or with supervisor approval, or in an emergency. Do not use a phone in food-prep or service areas.

Social media

Do not disclose the Company's confidential or proprietary information, use Company logos or trademarks without permission, post content that unlawfully harasses or threatens a coworker or guest, or post images of coworkers or guests without consent.

Your protected rights are not limited by this policy. Nothing here restricts your right to discuss or disclose wages, hours, or working conditions, to engage in protected concerted activity, or to report or discuss unlawful conduct. This policy will be interpreted and applied consistent with the National Labor Relations Act and California Labor Code sections 232, 232.5, and 1101–1102.5.

15. Confidentiality and Conflicts of Interest

Confidential information. In your work you may learn confidential or proprietary information such as recipes and preparation methods, vendor pricing and sourcing, financial data, operational procedures, and non-public customer information. Do not use or disclose this information except as your job requires or as authorized in writing. This does not restrict your legally protected rights (see Section 14), including the right to discuss wages and working conditions or to report unlawful conduct to a government agency.

Conflicts of interest. Avoid situations where your personal interests conflict with the Company's, such as outside work that competes with or interferes with your job. Disclose potential conflicts to the Company contact. The Company does not prohibit lawful off-duty conduct except where it creates a genuine conflict or affects job performance.

Return of property. On separation, return all Company property (keys, uniforms, equipment, access cards, devices, and documents). The Company will deduct from wages only when permitted by law and with your specific written authorization.

16. Safety, Health, and Workers' Compensation

The Company maintains an Injury and Illness Prevention Program (IIPP) and expects every employee to follow safe work practices, use required equipment, and keep work areas clean. Report any hazard, injury, or accident to your supervisor immediately, however minor.

Food safety and illness

Follow all handwashing, glove, temperature, storage, and cross-contamination rules. Do not eat or drink in food-prep or service areas. Do not report to work, and notify a manager immediately, if you have symptoms required to be reported under the Food Code (such as vomiting, diarrhea, fever with sore throat, or jaundice) or have been diagnosed with a reportable illness.

Indoor heat illness

Kitchens can get hot. The Company follows Cal/OSHA's indoor heat illness prevention requirements, including access to cool-down areas, water, rest, and acclimatization. Tell a supervisor right away if you feel ill from heat.

Workers' compensation

Work-related injuries and illnesses are covered by workers' compensation insurance. Report any work-related injury immediately so a claim can be initiated. Retaliation for reporting an injury or filing a claim is prohibited.

17. Drug- and Alcohol-Free Workplace

Being impaired by alcohol, cannabis, unlawful drugs, or misused prescription or over-the-counter medication while working, and the unlawful manufacture, possession, distribution, or use of drugs on Company premises or during work, are prohibited. If a prescribed or over-the-counter medication could affect your ability to work safely, talk to your supervisor.

Off-duty cannabis. Consistent with California law (FEHA, as amended by AB 2188/SB 700), the Company does not discriminate against employees based on lawful off-duty cannabis use away from work, or on findings from certain tests that detect non-psychoactive cannabis metabolites. This does not permit possession, use, or impairment at work.

Searches. The Company may inspect work areas, lockers, and personal items brought onto the premises only on reasonable suspicion of a policy violation, consistent with privacy law.

18. Workplace Violence Prevention

The Company has zero tolerance for workplace violence and maintains a written Workplace Violence Prevention Plan as required by California law (Labor Code section 6401.9 / SB 553), including procedures to report and respond to threats and incidents, training, and a violent-incident log. Threats, intimidation, physical aggression, and possession of weapons on Company premises or while on Company business are prohibited. Report any threat or act of violence to a manager immediately; in an emergency, call 911.

Security cameras may be used for safety, training, and loss prevention. Cameras are never placed in restrooms or lactation areas.

19. Whistleblower Protection and Open Door

The Company complies with the law and expects employees to report suspected unlawful or unethical conduct. Consistent with Labor Code section 1102.5, the Company prohibits retaliation against any employee who reports, or refuses to participate in, conduct they reasonably believe is unlawful, whether the report is made internally or to a government or law-enforcement agency. Report concerns through any channel in Section 3 or directly to a government agency.

20. General Provisions

Modification. Except for the at-will nature of employment, the Company may add to, change, suspend, or revoke any policy in this Handbook at any time, with or without notice. This Handbook supersedes and replaces all prior handbooks, policies, and practices, whether written or verbal.

Separate agreements. The Company's Mutual Arbitration Agreement and any signed offer letter or employment agreement are separate documents; where a signed individual agreement conflicts with this Handbook, the signed agreement controls as to its subject matter.

Severability. If any provision of this Handbook is found unlawful or unenforceable, the remaining provisions remain in effect, and the unlawful provision will be applied only to the extent permitted by law.

City Addendum — Hayward, California

This Addendum supplements the Handbook for employees who work in Hayward, Alameda County. Where a local ordinance provides greater rights than state law, the local ordinance applies. Local rates and rules change at least annually — the figures below must be reverified at each printing.

Minimum wage

Item	Detail
Minimum wage — large employers (26+)	\$17.79 per hour (effective January 1, 2026; adjusts every January 1 by CPI, max 5%)
Minimum wage — small employers (25 or fewer)	\$16.90 per hour (California state rate)
Coverage	Employees who work ≥ 2 hours per week within Hayward
Tips	No tip credit — tips may not be counted toward the minimum wage

Paid sick leave

No local ordinance. California state paid sick leave (Handbook Section 8) applies.

Service charges

No local ordinance. Handbook Section 7 and California law apply.

Fair workweek / scheduling

None. California rules apply.

Acknowledgment of Receipt

(Review the statements below — your signature on the next page confirms all of them. Keep the Handbook for your reference; questions go to the General Manager.)

- I have received the Obento – Hayward California Employee Handbook of OH BENTO INC and understand that I am responsible for reading and following it.
- I understand that my employment is at-will: either the Company or I may end the employment relationship at any time, for any lawful reason or no reason, with or without cause or notice, and that only a written agreement signed by an officer of the Company can change this.
- I understand that this Handbook is not a contract and does not guarantee employment for any period, and that the Company may change, add, or remove policies at any time, except the at-will relationship.
- I understand that this Handbook supersedes all prior handbooks and policies, and that if the Company materially revises it, I may be asked to sign a new acknowledgment.
- I understand that nothing in this Handbook limits my legally protected rights, including the right to discuss wages and working conditions and to report unlawful conduct to a government agency.
- I understand that the Company's Mutual Arbitration Agreement is a separate document that I sign separately, and that it is not part of this Handbook.

EMPLOYEE SIGNATURE

By signing below, I acknowledge that I have received and read the Obento – Hayward Employee Handbook of OH BENTO INC and agree to follow the policies in it.

Employee signatureDate

Company representativeDate